

Fugitive Economic Offenders (Receipt and Management of Confiscated Properties) Rules, 2018

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Fugitive Economic Offenders (Receipt and Management of Confiscated Properties) Rules, 2018

UNION OF INDIA

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Fugitive Economic Offenders (Receipt and Management of Confiscated Properties) Rules, 2018

Rule

FUGITIVE-ECONOMIC-OFFENDERS-RECEIPT-AND-MANAGEMENT-OF-CONFISCATED-PROPERTIES-RULES-2018 of 2018

Published on 24 April 2018

Commenced on 24 April 2018

[This is the version of this document from 24 April 2018.]

[Note: The original publication document is not available and this content could not be verified.]

Fugitive Economic Offenders (Receipt and Management of Confiscated Properties) Rules, 2018

Published vide Notification No. G.S.R. 397(E), dated 24.4.2018

G.S.R. 397(E). - In exercise of the powers conferred by clause (g) of sub-section (2) of section 23 of the Fugitive Economic Offenders Ordinance, 2018 (1 of 2018), the Central Government hereby makes the following rules, namely: -

1.

Short title and commencement.

(1)

These rules may be called the Fugitive Economic Offenders (Receipt and Management of Confiscated Properties) Rules, 2018.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Administrator" means an officer appointed by the Central Government under sub-section (1) of section 15 of the Ordinance;

(b)

"Form" means forms appended to these rules;

(c)

"Ordinance" means the Fugitive Economic Offenders Ordinance, 2018 (1 of 2018);

3.

Receipt of confiscated property.

- The Administrator shall, at the time of receiving the confiscated properties, ensure proper identification of such property with reference to its particulars mentioned in the order confiscating such property.

4.

Management of confiscated property.

(1)

Where the property confiscated is of such a nature that its removal from the place of attachment is impracticable or its removal involves expenditure out of proportion to the value of the property, the Administrator shall arrange for the proper maintenance and custody of the property at the place of attachment.

(2)

If the property confiscated consists of cash, Government or other securities, bullion, jewellery or other valuables, the Administrator shall deposit such cash, securities, bullion, jewellery or other valuables, for safe custody in the nearest Government Treasury or a branch of the Reserve Bank of India or State Bank of India or any authorised bank.

(3)

The Administrator shall maintain a register containing the details of immovable property referred to in sub-rule (1) in Form I and details of moveable properties, such as cash, Government or other securities, bullion, jewellery or other valuables in Form II.

(4)

The Administrator shall obtain a receipt from the Treasury or Reserve Bank of India or the bank, as the case may be, against the deposit made in sub-rule (2) of this rule.

Form I

[See sub-rule (3) of rule 4]

Management of Confiscated Property (Immoveable)

1. Order Number:

2. Date of receipt of properties:

3. Description of properties: (In case of land: area, survey number, plot number, location and complete address. In case of building: house number, location and complete address):

4. Name(s) and address(es) of the fugitive economic offender :

5.

Remarks of the Administrator:

Signature of the Administrator.....Name and designation of the Administrator.

Date.....

Form II

[See sub-rule (3) of rule 4]

Management of Confiscated Property (Moveable)

1. Order number:

2. Date of receipt of properties:

3. Description of properties (quantity, amount, estimated value) :

4. Name(s) and address(es) of the fugitive economic offender :

5. Name and address of the Treasury or bank where the properties are deposited for safe custody:

6.

Date and time of deposit of confiscated properties in the Treasury or Reserve Bank of India or bank:

7.

Receipt number with date of the receipt obtained from the Treasury or Reserve Bank of India or bank:

8.

Remarks of the Administrator:

Signature of the Administrator.....Name and designation of the Administrator.

Date.....

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